



DELIVERY HERO TALABAT DB LLC.
B06-00-09 Citywalk
Al Wasl St. Dubai, UAE
PO Box 36728
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Letter of Agreement

Roohiya Fatima
July 31, 2023
DELIVERY HERO TALABAT DB LLC
("Talabat")

WHEREAS, Talabat is in the business of food ordering and delivery, and owns the website "www.talabat.com" and related E-commerce applications;

WHEREAS, the "Subscriber" owns and/or operates the Vendor (collectively, the "Vendors");

Contact details	Invoice details
Legal Name: BFF Management LLC	Bank Account Owner: BFF Management LLC
Brand name: Vkusno Russian Kitchen, Business Bay	IBAN: AE490330000019100282077
Address: City: Dubai Area: Burj Residences Sol Avenue, Ground Floor, Business Bay Dubai	Bank Account Number: 019100282077
Contact Person: Boutros Abou Rahal	Bank Name: Mashreq Bank PSC
Contact Email: md@bff.bar	Bank Swift Code: BOMLAHADXXX
Contact Phone: +971521025674	Invoice Email: accounts@bff.bar

WHEREAS, the Subscriber wishes Talabat to (i) receive and transmit customers' orders to the Restaurants, (ii) accept payments on behalf of the Subscriber through Talabat Debit or Credit payment gateways (the "Payment Gateways"), (iii) provide the Talabat Go services, whereby Talabat oversees the readiness of the customers' orders, handles the orders on behalf of the customers and delivers the ordered food to customers (the "Services") the whole as further described in the Terms and Conditions, and Talabat wishes to provide the Services to the Subscriber.

NOW THEREFORE, in consideration of the mutual agreements contained hereunder, the Parties agree as follows:

1 Commission, Registration fee, Renewal fee and Bank Charges

Product Name	Commission	Min Value	Max Value	Tiers	Start Date	End Date
TPRO Commission	0.00	0	30	1	31/07/2023	
TPRO Commission	4.00	30	45	2	31/07/2023	
TPRO Commission	7.00	45		3	31/07/2023	

For tPro Orders, Commission charged by talabat will be capped at Amount 80.00 AED. In the event the Basket Food Value is over 80.00 AED, the Partner will pay to Talabat the commission only on the amount of 80.00 AED.

Add on Name	Contract Addition	Specifications	Start Date	End Date
TPRO-TGO Add-On	-The Partner agrees to fully fund the Delivery		31/07/2023	

fees (AED 7 per order) for orders with a basket value of AED 45 and above, and funding the Delivery fees (AED 4 per order) for orders with a basket value between AED 30 and below AED 45, in the following events: Free delivery on Talabat Go ("TGO") orders that are over the Minimum Order Value ("MOV"), which is 30 AED, will be fully funded by the Partner (on members orders only), in return, the Partner will benefit from the below commission capping and be part of the program:

Capping Structure: In the event the Basket Food Value is above the agreed commission capping value as per contract, the Partner will pay to Talabat the commission agreed on, only on the amount of the capping. The above-mentioned commission structure shall only be applicable on Pro member's orders, that Partner has funded free delivery for.

In the event an order is originally on free delivery for reasons not related to talabat pro (e.g. free delivery temporary or permanent campaign), the above commercials will not be applicable on members orders.

-Either Party shall have the right to terminate this Annex ("Annex 1"), at any time, for convenience, by giving the other party 30 days prior written notice. In the event of termination of tPro program or the contract by the Partner, before the end of the term of the contract, the Partner

	shall be obliged to refund any investment made by Talabat for them including but not limited to co-funding free delivery charges.		
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1. FEES AND COMMISSION

1.1. In consideration for the Services, the Subscriber shall pay to Talabat the following, as per the above tables.

1.1.1. If applicable, a one-time registration and subscription fee upon signing the Contract.

1.1.2. If applicable, an annual renewal fees to be paid on a monthly basis, from the online date of the restaurants.

1.1.3. A commission, specified in Appendix (1), of the total value of each order (i.e. to total amount charged to the customer) processed by Talabat, including delivery charges if applicable (the "Commission").

1.1.4. If applicable, for cash transactions, the Subscriber shall bear a cash handling fees charge of 2% from the total order amount.

1.1.5. It is Talabat's uncompromising policy to adhere to all applicable laws and regulations concerning free and fair competition and leaves it to the Participant's absolute discretion to deal with one or more entities that directly compete in providing services similar to those of Talabat or any of its subsidiaries during the term of the contract. However, in the event the Participants elects to:

(a) deal only with Talabat, then such Participants shall be entitled to the discount referred to in Appendix (1).

1.2 In the event the participant does not adhere to the conditions entitling it to a discount as contemplated above, Talabat shall have the right to adjust or cancel the discount provided to the participant without the need for written notice.

1.3 If applicable, the Registration Fee shall be paid by the Subscriber to Talabat upon execution of this Letter of Agreement, and the Annual Renewal Fee shall be paid by the Subscriber to Talabat on each anniversary date of the execution of this Letter of Agreement.

1.4 The start date of the calculation of restaurant's commission shall be the activation date of the ordering service provided by Talabat, and which shall be communicated to the restaurant by email.

1.5 The Commission shall be deducted from the amount due to the Subscriber and collected by Talabat through the Payment Gateways, the whole as further described in the Terms and Conditions.

1.6 For any reason, and in case Talabat could not settle its all dues described in the Terms and Conditions, and as described in this Letter of Agreement, Talabat shall be paid by the Subscriber the agreed commission and the invoices due within seven (7) business days of the receipt of Talabat's monthly invoice, the whole as further described in the Terms and Conditions.

1 TERM

This Agreement shall be effective from the date first written above and shall remain in full force and effect for a period of 1 year. The term of the Agreement shall automatically extend at the end of the initial term for a series of similar terms, unless either Party gives written notice of non-renewal to the other party, not later thirty (30) days before the end of the initial term (or subsequent terms).

2 TALABAT'S SUBSCRIBERS TERMS AND CONDITIONS

This Letter of Agreement shall be governed by, and subject to, Talabat's terms and conditions shared here as <https://www.talabat.com/page/vendor/terms/restaurants> (the "Terms and Conditions"). For clarification purposes, the term "Agreement" as used herein shall collectively refers to this Letter of Agreement and the Terms and Conditions. By signing this Letter of Agreement, the Subscriber agrees to be bound by the Terms and Conditions.

3 EQUIPMENT

The devices shall only be used by the Subscriber for the purpose of executing orders received from TALABAT "Equipment", and as detailed in the Terms and Conditions.

The subscriber shall pay the cost of the devices as set forth in the Appendix (1) at the time of signing the Contract.

4 AMENDMENTS

No amendment, variation or supplement to this Letter of Agreement shall be effective unless it is in writing and signed by both Parties.

5 CONFIDENTIALITY & DATA PROTECTION

For the purpose of confidentiality and data protection, from the date hereof until the date of termination of this Subscription Agreement, the Subscriber and its affiliates, agents, representatives or employees undertakes not to, directly or indirectly, share any of TALABAT's data with any other Third Parties that compete with TALABAT and provide the same services. In the event the Subscriber does not comply and infringes the confidentiality clause, TALABAT shall have the right to take legal action against the Subscriber and terminate this Agreement with immediate effect by delivering notice of the termination to the Subscriber.

6 COUNTERPARTS

This Agreement may be executed and delivered (including by facsimile or other means of electronic transmission, such as by electronic mail in "pdf" form) in two or more counterparts, and by both parties hereto in separate counterparts, each of which when executed shall be deemed to be an original, but all of which taken together shall constitute one and the same

As described above in the LOA, payables due to Talabat shall be paid in cash or through a transfer to the following bank account:

Beneficiary Name: Delivery Hero Talabat DB LLC	
IBAN No.: AE940330000019200032478	Bank Name: Mashreq Bank P.S.C.
Account No.: 19200032478	Swift Code: BOMLAHADHDO

IN WITNESS WHEREOF, the Parties have duly executed this Agreement as of the date first above written.

FOR AND OF BEHALF Subscriber

FOR AND ON BEHALF OF Talabat

Boutros Abou Rahel.
Name

Jeremy Doutte Mahmoud Khamis
Name

Operations Manager.
Position

Authorized Signatories
Position

16/08/2023
Date

31/07/2023 13:43
Date

784-1982-0929294-7
National Id

DocuSigned by:
Jeremy Doutte
3DEDD3070889468

DocuSigned by:
Mahmoud Khamis
C1B49C41528A46D

[Signature]
Signature

[Signature]
Signature

